

Imran v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · WRIT - C No. - 21211 of 2022 · **Writ disposed; relegated to Clause 6.8 objection with stay**

HEADNOTE

Without examining merits, the Division Bench disposed of a writ against a Rs. 37,219 provisional assessment by giving the consumer liberty to object under Para 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing and staying coercive recovery for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Petitioner Imran, a consumer, filed a writ petition in the Allahabad High Court seeking certiorari to quash a provisional assessment dated 2 July 2022 for Rs. 37,219 issued by the power distribution corporation, and a mandamus restraining the respondents from compelling payment of that demand. Counsel for the corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment

HOLDING

A writ against a provisional assessment is disposed without opinion on merits by relegating the consumer to an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be filed within four weeks and decided within the next four weeks after a reasonable opportunity of hearing, with no coercive action on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court declined merits review of the 2.7.2022 provisional assessment and relegated the consumer to the statutory Para 6.8 objection before the assessing authority. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the objection is filed within four weeks, respondent No. 3 must decide it in accordance with law within the next four weeks after hearing, and coercive recovery is stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT DATED 2.7.2022

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1